

		1267; see also Bogdanovic Decl. ¶ 1 & Ex. C [“These Terms and Conditions of Service and the relationship of the parties shall be construed according to the laws of the State of Tennessee, without giving consideration to principles of conflict of laws.”].) ATM has demonstrated the existence of an agreement to arbitrate the controversy between ATM and plaintiff. (See <i>T.R. Mills Contractors, Inc. v. WRH Enterprises, LLC</i> (Tenn. Ct. App. 2002) 93 S.W.3d 861, 870; see also Bagdanovic Decl. ¶¶ 7-15, Exs. A-C.) Plaintiff has declined to agree to arbitrate. (See, e.g., ROA Nos. 49 [Pl. CMC Stmt. ¶ 10c(5), failing to indicate it is willing to submit to binding private arbitration], 51 [notice of non-opposition, electing not to oppose the motion but expressly disclaiming the admission of any allegations/contentions in the moving papers].) Plaintiff has also expressly “elect[ed] not to file [an] opposition.” (ROA No. 51 [notice of non-opposition, p. 2].) Under the procedural rules of the Tennessee Uniform Arbitration Act, where, as here, the “motion ... show[s] an agreement to arbitrate” and the other party “does not oppose the motion, then the court must order the parties to arbitrate” and stay the action as to any claims subject to the arbitration. (Tenn. Code Ann. § 29-5-308(a), (g).) This action is STAYED <u>as to ATM only</u> pending completion of arbitration or until further order of the court. The court schedules an Alternative Dispute Resolution (ADR) Review Hearing as to Plaintiff and ATM only on April 16, 2027 at 8:30 a.m. in Department C44. Case Management Conference continued to February 19, 2027 at 8:30 a.m. in Department C44. The parties are ordered to meet and confer 30 days before the CMC per CRC, Rule 3.724, and file Case Management Statements 15 days prior to the CMC per CRC, Rule 3.725. ATM shall give notice.
207	Gutierrez vs. Rivian Automotive, Inc. 2025-01533837	Motion to Compel Arbitration Defendant Rivian Automotive, Inc.’s motion to compel arbitration is DENIED.

	Under both the California Arbitration Act (CAA) and the Federal Arbitration Act (FAA), the party seeking to compel arbitration bears the burden of proving the existence of an agreement to arbitrate by a preponderance of the evidence. (Code Civ. Proc., § 1281.2 [CAA]; <i>Engalla v. Permanente Medical Group, Inc.</i> (1997) 15 Cal.4th 951, 972 [CAA]; <i>Knutson v. Sirius XM Radio Inc.</i> (9th Cir. 2014) 771 F.3d 559, 564-565 [FAA]; <i>Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC</i> (2012) 55 Cal.4th 223, 236 [applying FAA].) Defendant has failed to meet this burden as the arbitration agreement it relies on appears in a contract that has nothing to do with this case. (See <i>Johnson v. Walmart Inc.</i> (9th Cir. 2023) 57 F.4th 677, 681 [where the plaintiff’s claim “does not arise out of the contract containing the arbitration agreement” but rather, “arises out of an entirely separate transaction,” it is “the existence, not the scope, of an arbitration agreement” that is at issue].) Specifically, defendant has brought this motion pursuant to an arbitration provision in a “Rivian Motor Vehicle Purchase Agreement” (purchase agreement) for the cash purchase of a 2023 Rivian R1T, VIN 7FCTGAAAXPN017305, entered into between plaintiff Gilberto Jose Gutierrez and Rivian, LLC in Venice, California on 1/9/23. (Ameripour Decl. ¶ 2, Ex. 1.) This action, however, does not arise out of plaintiff’s purchase of that vehicle. This action arises out of plaintiff’s lease of an entirely different vehicle—a 2025 Rivian R1S, VIN 7PDSGBBA9SN050254—from Rivian, LLC in Costa Mesa, California on 12/13/24. (Compl. ¶ 9.) The purchase agreement only “governs [plaintiff’s] purchase and [defendant’s] sale of the vehicle” in that agreement, i.e., the 2023 Rivian R1T, and does not purport to govern plaintiff’s purchase or lease of any other vehicles. (See Ameripour Decl. at Ex. 1.) Defendant has failed to explain how an arbitration provision in such an agreement applies to an action arising out of plaintiff’s lease of an entirely different vehicle nearly two years later. (See Mtn. Memo. P&As, in passim.) Indeed, it does not. “To be arbitrable, the dispute must relate to the contract.” (<i>Jackson v. Amazon.com, Inc.</i> (9th Cir. 2023) 65 F.4th 1093, 1101.) The claims must be “rooted” in the contract containing the arbitration provision or in the relationship between the parties that was created by that contract. (<i>Ahern v. Asset Management Consultants, Inc.</i> (2022) 74 Cal.App.5th 675, 692-
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		693; <i>Rice v. Downs</i> (2016) 248 Cal.App.4th 175, 188.) “[E]ven under broad arbitration clauses..., [the complaint’s] factual allegations must at least ‘ “touch matters” covered by the contract containing the arbitration clause.’ ” (<i>Jackson v. Amazon.com, Inc.</i> at p. 1101.) In other words, “[a]n arbitration agreement is tied to the underlying contract containing it, and applies ‘only where a dispute has its real source in the contract. The object of an arbitration clause is to implement a contract, not to transcend it.’ (<i>Litton Financial Printing Div. v. NLRB</i> (1991) 501 U.S. 190, 205, 111 S.Ct. 2215, 115 L.Ed.2d 177 (<i>Litton</i>).) No authority permits sending a matter to arbitration simply because the same parties agreed to arbitrate a different matter.” (<i>Moritz v. Universal City Studios LLC</i> (2020) 54 Cal.App.5th 238, 246; see <i>Johnson v. Walmart Inc., supra</i>, 57 F.4th at pp. 680-682; see also <i>id.</i> at p. 681 [“As ‘arbitration is a matter of contract[,] ... a party cannot be required to submit to arbitration any dispute which he has not agreed so to submit.’ ”].) This action does not arise out of or have anything to do with plaintiff’s purchase of the 2023 Rivian R1T or the relationship between the parties that was created by the purchase agreement for that vehicle. (Compare Ameripour Decl. at Ex. 1, with Compl., in passim.) It arises out of plaintiff’s lease of an entirely different vehicle two years later and the relationship created by this separate, independent transaction. (See Compl. ¶ 9; see also <i>id.</i>, in passim.) Thus, the arbitration provision in the purchase agreement does not apply to the lease of the vehicle at issue in this case, and nothing shows plaintiff ever agreed to arbitrate any disputes arising out of this transaction. (See <i>Moritz v. Universal City Studios LLC, supra</i>, 54 Cal.App.5th at pp. 246-248; <i>Jackson v. Amazon.com, Inc., supra</i>, 65 F.4th at p. 1101; see also <i>Johnson v. Walmart Inc., supra</i>, 57 F.4th at pp. 680-682.) Defendant shall give notice.
208	Holden vs. Royale Management Group, LLC 2026-01539035	Motion Granting Relief from Courts Defendant/respondent Royale Management Group, LLC’s motion for relief from the court’s 6/1/26 decision entered after an uncontested trial is DENIED. (See Code Civ. Proc., § 437, subd. (b).) This motion has been brought pursuant to the discretionary relief provision of Code of Civil Procedure section 473, subdivision (b) (section 473(b)).